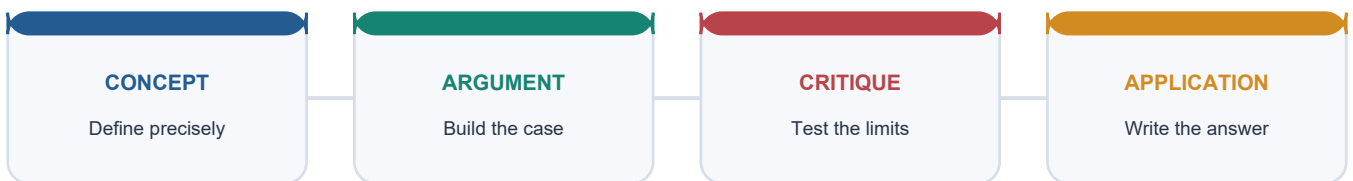


COMPLETE LEARNING SESSION

SCHEDULED AND TRIBAL AREAS - SOLVED PRACTICE WORKBOOK

32 original MCQs, verified PYQs and six solved Mains models

LEARNING PATH



Deterministic fallback visual: move from precise concepts through argument and critique to exam application.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

CONTENTS / SESSION INDEX

Major learning parts and meaningful subtopics are listed in document order. Page numbers are generated from the final PDF layout; PDF bookmarks mirror the same hierarchy.

SCHEDULED AND TRIBAL AREAS - SOLVED PRACTICE WORKBOOK 4

BASIC MCQS / REMEDIATION 4

MCQ 1	4
MCQ 2	4
MCQ 3	4
MCQ 4	5
MCQ 5	5
MCQ 6	5
MCQ 7	5
MCQ 8	6
MCQ 9	6
MCQ 10	6
MCQ 11	7
MCQ 12	7
MCQ 13	7
MCQ 14	7
MCQ 15	8
MCQ 16	8
MCQ 17	8
MCQ 18	9
MCQ 19	9
MCQ 20	9
MCQ 21	9
MCQ 22	10
MCQ 23	10
MCQ 24	10
MCQ 25	11
MCQ 26	11
MCQ 27	11

MCQ 28	11
MCQ 29	12
MCQ 30	12
MCQ 31	12
MCQ 32	13
REMEDATION GRID	13
PYQS AND ANSWER PRACTICE	13
PYQ 1 - UPSC Prelims 2019, Q50	13
PYQ 2 - UPSC Prelims 2022, Q73	13
PYQ 3 - UPSC Prelims 2023, Q39	14
PYQ 4 - UPSC Prelims 2024, Q84	14
PYQ 5 - UPSC Prelims 2025, Q56	14
PYQ 6 - UPSC Prelims 2026, Q57	14
ORIGINAL MAINS MODELS	15
Original Mains 1 - 10 marks, 150 words	15
Original Mains 2 - 10 marks, 150 words	15
Original Mains 3 - 15 marks, 250 words	15
Original Mains 4 - 15 marks, 250 words	16
Original Mains 5 - 20 marks, 250 words	16
Original Mains 6 - 20 marks, 250 words	17

SCHEDULED AND TRIBAL AREAS - SOLVED PRACTICE WORKBOOK

Subject: Indian Polity | **Topic:** 26

This section contains exactly 32 original MCQs before the PYQs. The answer sequence is ABCD repeated eight times. Every option has a distinct question-specific explanation and every question has a unique examiner trap.

BASIC MCQS / REMEDIATION

MCQ 1

Which mapping is constitutionally correct?

A. Article 244(1) applies the Fifth Schedule. B. Article 244(1) applies the Sixth Schedule. C. Article 244(2) applies PESA. D. Article 244A declares Scheduled Areas.

Answer: A.

Option explanations

- A: Correct: clause (1) applies the Fifth Schedule to its defined field.
- B: Clause (2), not clause (1), applies the Sixth Schedule.
- C: PESA is a 1996 statute extending modified Part IX.
- D: Article 244A enables an autonomous State within Assam.

Examiner trap 1: Map the clause before recalling the institution.

MCQ 2

The Fifth Schedule applies to Scheduled Areas in:

A. all States including the four Sixth Schedule States. B. States other than Assam, Meghalaya, Tripura and Mizoram. C. only the four North-Eastern States. D. Union Territories alone.

Answer: B.

Option explanations

- A: The constitutional text expressly excludes the four Sixth Schedule States.
- B: Correct: Article 244(1) states this territorial rule.
- C: Those four States are the field of Article 244(2).
- D: The Fifth Schedule is framed for States, not a UT-only category.

Examiner trap 2: A State may contain both scheduled and non-scheduled territory.

MCQ 3

Legal status as a Scheduled Area is created by:

A. a TAC resolution. B. a State Cabinet memorandum. C. a Presidential order under paragraph 6. D. an Autonomous District Council law.

Answer: C.

Option explanations

- A: TAC advice cannot notify territory.
- B: Administrative recommendation does not create constitutional status.
- C: Correct: paragraph 6 uses the Presidential-order route.
- D: An ADC operates under the Sixth Schedule.

Examiner trap 3: Official criteria guide identification; the order creates status.

MCQ 4

Which statement on administration of a Fifth Schedule area is correct?

A. A local body assumes total administration. B. The Union automatically replaces the State. C. The TAC becomes the executive government. D. State executive power continues, with Governor reports and Union directions.

Answer: D.

Option explanations

- A: No such automatic local takeover exists.
- B: The Union has a direction power, not automatic total administration.
- C: TAC is advisory rather than executive.
- D: Correct: paragraph 3 preserves State administration within supervision.

Examiner trap 4: Supervision is not substitution.

MCQ 5

The ordinary TAC composition rule is:

A. not more than twenty, with about three-fourths ST Assembly representatives. B. thirty members, all elected. C. forty-six members, including six nominees. D. a body composed only of officials.

Answer: A.

Option explanations

- A: Correct: this is paragraph 4, including the shortfall mechanism.
- B: Thirty is associated with the ordinary Sixth Schedule council ceiling.
- C: Forty-six is the Bodoland-specific design.
- D: The Schedule seeks tribal representative membership, not an official-only board.

Examiner trap 5: Remember 'twenty and three-fourths', not 'thirty and four'.

MCQ 6

A Tribes Advisory Council primarily:

A. enacts binding land laws. B. advises on ST welfare and advancement matters referred by the Governor. C. decides appeals from village courts. D. levies land revenue.

Answer: B.

Option explanations

- A: The Governor, not TAC, makes paragraph 5 regulations.
- B: Correct: referral and advice define TAC's role.
- C: Village/council courts belong to the Sixth Schedule.
- D: TAC has no constitutional tax power.

Examiner trap 6: Advisory representation is not territorial government.

MCQ 7

A Governor-made Fifth Schedule regulation becomes effective after:

A. State Cabinet publication alone. B. Governor assent. C. Presidential assent. D. approval by an ADC.

Answer: C.

Option explanations

- A: Publication alone cannot replace the assent condition.
- B: The Governor makes the regulation rather than assenting to it.
- C: Correct: paragraph 5 requires submission to and assent by the President.

- D: An ADC has no role in a Fifth Schedule regulation.

Examiner trap 7: Keep the Fifth-President and Sixth-Governor assent reversal clear.

MCQ 8

Parliament may amend the Fifth Schedule:

A. only through a referendum. B. only after ratification by half the States. C. only under Article 368 special majority. D. by ordinary law under paragraph 7, not deemed an Article 368 amendment.

Answer: D.

Option explanations

- A: No referendum route is prescribed.
- B: State ratification is not the paragraph 7 mechanism.
- C: Paragraph 7 expressly excludes Article 368 treatment.
- D: Correct: the Schedule contains its own amendment route.

Examiner trap 8: Special constitutional text can itself prescribe ordinary-law alteration.

MCQ 9

Article 244A enables Parliament to:

A. form an autonomous State within Assam with a legislature, Council of Ministers or both. B. notify Scheduled Areas throughout India. C. specify Scheduled Tribes. D. create every statutory hill council.

Answer: A.

Option explanations

- A: Correct: this is the Assam-only autonomous-State route.
- B: Fifth Schedule paragraph 6 supplies that notification route.
- C: Article 342 supplies the ST-specification route.
- D: Statutory councils depend on their enabling Acts.

Examiner trap 9: An autonomous State route is distinct from an autonomous district.

MCQ 10

The Sixth Schedule's exact State set is:

A. Assam, Nagaland, Manipur and Mizoram. B. Assam, Meghalaya, Tripura and Mizoram. C. all eight North-Eastern States. D. Meghalaya, Tripura, Mizoram and Arunachal Pradesh.

Answer: B.

Option explanations

- A: Nagaland and Manipur use other constitutional arrangements.
- B: Correct: use the AMTM mnemonic.
- C: The Schedule is not pan-North-East.
- D: Arunachal Pradesh is not in the Article 244(2) set.

Examiner trap 10: Geography is a high-frequency elimination tool.

MCQ 11

Where different Scheduled Tribes inhabit parts of an autonomous district, the Governor may:

A. declare a Fifth Schedule area. B. specify the ST list. C. divide the area into autonomous regions. D. create a new State without Parliament.

Answer: C.

Option explanations

- A: Scheduled Area declaration is a Presidential route.
- B: Article 342 concerns tribe specification.
- C: Correct: autonomous regions protect internal territorial diversity.
- D: State creation requires parliamentary constitutional procedure.

Examiner trap 11: District contains region; region does not become a State.

MCQ 12

Under the ordinary paragraph 2 model, a District Council has:

A. exactly thirty elected members. B. twenty members with three-fourths ST MLAs. C. forty-six members in every State. D. not more than thirty, up to four nominated and the rest elected.

Answer: D.

Option explanations

- A: Thirty is a ceiling and nominees are permitted.
- B: That is a distorted TAC rule.
- C: Forty-six is a bounded Bodoland exception.
- D: Correct: this is the ordinary constitutional model.

Examiner trap 12: Do not convert a ceiling into a compulsory composition.

MCQ 13

Which statement accurately describes the Bodoland Territorial Council?

A. It has a special up-to-forty-six design: forty elected and six nominated. B. It follows the twenty-member TAC rule. C. It is an autonomous State under Article 244A. D. It is a statutory council outside the Sixth Schedule.

Answer: A.

Option explanations

- A: Correct: the 2003 amendment supplies the bounded exception.
- B: TAC belongs to the Fifth Schedule.
- C: Article 244A has not converted BTC into an autonomous State.
- D: BTC is constitutionally located in the Sixth Schedule.

Examiner trap 13: State-specific exception must stay attached to Bodoland.

MCQ 14

Which is within the ordinary paragraph 3 legislative field?

A. reserved forests. B. regulation of shifting cultivation. C. currency. D. defence.

Answer: B.

Option explanations

- A: The text covers forests other than reserved forests.
- B: Correct: shifting cultivation is expressly listed.
- C: Currency is a Union field outside this grant.

- D: Defence is not a council subject.

Examiner trap 14: The adjective 'reserved' decides the forest option.

MCQ 15

An ordinary District or Regional Council law under paragraph 3 takes effect after:

A. Presidential assent in every case. B. TAC approval. C. Governor's assent. D. Supreme Court certification.

Answer: C.

Option explanations

- A: President is not the routine assent authority for ordinary council laws.
- B: TAC is a Fifth Schedule advisory body.
- C: Correct: the Governor's assent is the ordinary rule.
- D: Courts review disputes; they do not certify every council law.

Examiner trap 15: Do not import the Fifth Schedule assent rule.

MCQ 16

Sixth Schedule village or council courts:

A. replace the High Court. B. exercise unlimited criminal jurisdiction. C. hear every dispute involving any resident. D. exercise specified jurisdiction within territorial, party and legal limits.

Answer: D.

Option explanations

- A: High Court jurisdiction remains constitutionally available.
- B: The Schedule and rules bound criminal competence.
- C: Party and territorial conditions matter.
- D: Correct: customary justice is constitutionally nested.

Examiner trap 16: Local justice is not judicial sovereignty.

MCQ 17

A Sixth Schedule council may constitutionally:

A. assess and collect land revenue and levy specified taxes. B. levy any tax in the Seventh Schedule. C. appropriate the Consolidated Fund of India. D. abolish State audit.

Answer: A.

Option explanations

- A: Correct: paragraphs 7 and 8 create enumerated fiscal powers.
- B: Council taxing power is not plenary.
- C: The Union fund is outside council appropriation.
- D: Council funds remain subject to accounting and audit.

Examiner trap 17: Enumerated fiscal autonomy is not sovereign taxation.

MCQ 18

Paragraph 10 principally concerns:

A. declaration of Scheduled Areas. B. regulation and licensing of money-lending and trading by non-tribals. C. formation of an autonomous State. D. specification of Scheduled Tribes.

Answer: B.

Option explanations

- A: That is a Fifth Schedule Presidential function.
- B: Correct: the paragraph uses council regulation, supermajority and Governor assent.
- C: Article 244A supplies that route.
- D: Article 342 supplies the specification route.

Examiner trap 18: Licensing power has its own supermajority and established-trader limit.

MCQ 19

Paragraph 9 of the Sixth Schedule provides for:

A. council ownership of all subsoil minerals. B. a Gram Sabha veto over mining. C. an agreed share of mineral royalties, with Governor determination of disputes. D. automatic transfer of mining leases to the council.

Answer: C.

Option explanations

- A: The Schedule does not vest all mineral ownership.
- B: PESA/FRA procedures are different legal questions.
- C: Correct: it is a State-Council revenue-sharing mechanism.
- D: The lease remains governed by applicable mining and land law.

Examiner trap 19: Royalty share is neither title nor consent.

MCQ 20

Which statement on application of laws is correct?

A. All four States use one identical council-consent rule. B. Every parliamentary Act is automatically excluded. C. State Acts always prevail in every State. D. Paragraphs 12, 12A, 12AA and 12B create different State-specific filters.

Answer: D.

Option explanations

- A: The Constitution deliberately differentiates the four States.
- B: Presidential or gubernatorial filtering depends on the paragraph.
- C: Meghalaya's repugnancy rule cannot be universalised.
- D: Correct: name the State, paragraph, actor and law class.

Examiner trap 20: A blanket non-application sentence is constitutionally unsafe.

MCQ 21

Under the ordinary Sixth Schedule control sequence:

A. a paragraph 14 commission can support a paragraph 16 dissolution route. B. the President dissolves every council at pleasure. C. TAC advice is compulsory before suspension. D. Article 356 automatically follows a council dispute.

Answer: A.

Option explanations

- A: Correct: commission, recommendation and bounded reconstitution/interim administration are linked.
- B: The ordinary actor is the Governor under specified conditions.

- C: TAC is not a Sixth Schedule body.
- D: Council control mechanisms are distinct from President's Rule.

Examiner trap 21: Separate commission, suspension and dissolution paragraphs.

MCQ 22

Which comparison is legally sound?

A. Every hill council is a Sixth Schedule ADC. B. A constitutional ADC, statutory council and Article 371 committee derive powers from different sources. C. Article 371B creates a District Council. D. PESA creates the Manipur Hill Areas Committee.

Answer: B.

Option explanations

- A: Institutional name cannot prove constitutional source.
- B: Correct: source determines field, finance and review.
- C: Article 371B concerns an Assam Assembly committee.
- D: The Hill Areas Committee derives from Article 371C arrangements.

Examiner trap 22: Decode source before comparing powers.

MCQ 23

PESA 1996 extends modified Part IX to:

A. Sixth Schedule tribal areas only. B. all rural India without exception. C. Fifth Schedule Scheduled Areas. D. only forest villages.

Answer: C.

Option explanations

- A: PESA does not govern Sixth Schedule areas.
- B: Ordinary Part IX and PESA have different fields.
- C: Correct: this is the statute's territorial purpose.
- D: Its village concept is wider than only forest villages.

Examiner trap 23: PESA is the Fifth Schedule bridge.

MCQ 24

PESA's village concept may be based on:

A. only a district headquarters. B. only a revenue district. C. only a statutory municipality. D. a habitation, hamlet or group managing affairs by traditions and customs.

Answer: D.

Option explanations

- A: A headquarters is not the statutory definition.
- B: The unit is intentionally more local than a district.
- C: Municipal territory is not the PESA village model.
- D: Correct: the law recognises lived community organisation.

Examiner trap 24: Do not force the habitation into a large Gram Panchayat boundary.

MCQ 25

Before village-Panchayat implementation, PESA requires the Gram Sabha to:

A. approve local social and economic development plans, programmes and projects. B. assent to every State Act. C. issue mining leases for major minerals. D. declare the area scheduled.

Answer: A.

Option explanations

- A: Correct: section 4(e) uses approval for this local-development stage.
- B: Legislative assent is not a Gram Sabha function.
- C: The Act does not confer general major-mineral leasing power.
- D: Scheduled Area status comes by Presidential order.

Examiner trap 25: Use 'approve' only for the decision that section 4 assigns it.

MCQ 26

Before land acquisition and R&R in Scheduled Areas, the central PESA text requires:

A. universal Gram Sabha consent. B. consultation with the Gram Sabha or Panchayat at the appropriate level. C. President's assent. D. District Council legislation.

Answer: B.

Option explanations

- A: The statute uses consultation, not a universal consent formula.
- B: Correct: section 4(i) uses this exact intensity.
- C: Presidential assent belongs to Fifth Schedule regulations.
- D: ADCs are Sixth Schedule institutions.

Examiner trap 26: Consultation and consent are not synonyms.

MCQ 27

For specified minor-mineral prospecting licences or mining leases, PESA requires:

A. TAC enactment. B. MoEF title recognition. C. mandatory prior recommendation of the named local institution. D. Article 244A approval.

Answer: C.

Option explanations

- A: TAC advises; it does not issue the statutory recommendation.
- B: FRA title and forest clearance are distinct.
- C: Correct: section 4(k)-(l) uses prior recommendation for specified minor-mineral decisions.
- D: Article 244A concerns an autonomous State in Assam.

Examiner trap 27: Minor mineral is essential; do not generalise to every mineral.

MCQ 28

PESA section 4(m) directs State law to endow powers concerning:

A. foreign affairs and currency. B. Supreme Court appointments. C. national defence and railways. D. minor forest produce, markets, money-lending, intoxicants, land restoration and local institutions.

Answer: D.

Option explanations

- A: Those are not local Scheduled-Area powers.
- B: Judicial appointments are constitutionally separate.

- C: These Union subjects are outside section 4(m).
- D: Correct: the basket connects resources, markets, services and restoration.

Examiner trap 28: Assign each power to the Gram Sabha or appropriate Panchayat as the clause states.

MCQ 29

Under FRA 2006, the forest-rights claims process begins with:

A. the Gram Sabha. B. the TAC. C. the District Council in every State. D. the President.

Answer: A.

Option explanations

- A: Correct: section 6 makes it the initiating authority.
- B: TAC has no FRA claims jurisdiction.
- C: ADCs exist only in the Sixth Schedule field.
- D: The President does not verify individual claims.

Examiner trap 29: Initiation by Gram Sabha is not final decision by Gram Sabha alone.

MCQ 30

The Niyamgiri judgment is best stated as:

A. a nationwide veto over every mine. B. Gram Sabha determination of specified FRA-linked claims, followed by MoEF's final Stage-II decision. C. transfer of all mineral ownership to the Dongria Kondh. D. abolition of forest-clearance law.

Answer: B.

Option explanations

- A: The holding was project- and statute-specific.
- B: Correct: community findings and final clearance authority were separate.
- C: The judgment did not confer subsoil ownership.
- D: It operated within, not outside, the forest-clearance framework.

Examiner trap 30: Do not convert consequential participation into an unlimited veto.

MCQ 31

The safest use of Samatha (1997) is:

A. Fifth Schedule itself bans all private mining nationally. B. the case has no relevance beyond compensation. C. the impugned non-tribal private mining leases were invalid under Andhra Pradesh's Scheduled-Area transfer regime, with later scope limits. D. the judgment created a Sixth Schedule council.

Answer: C.

Option explanations

- A: The constitutional Schedule worked through the applicable State regulation.
- B: The case directly concerned land transfer and protective governance.
- C: Correct: this states holding and jurisdictional boundary together.
- D: No ADC was created by the judgment.

Examiner trap 31: Always name the regulation-based setting and the nationwide-limit sentence.

MCQ 32

Chebrolu Leela Prasad Rao (2020) demonstrates that:

A. Scheduled Areas are outside Part III. B. the Governor may create unlimited reservation. C. all tribal preferences are invalid. D. 100 percent reservation for the specified teacher posts failed equality review despite the protective context.

Answer: D.

Option explanations

- A: Fundamental Rights continue to apply.
- B: Paragraph 5 is not an equality-free power.
- C: Targeted lawful preference remains possible.
- D: Correct: protective purpose must use constitutionally valid means.

Examiner trap 32: Protection and equality must be reconciled, not treated as mutually exclusive.

REMEDATION GRID

Error pattern	Repair cue
Fifth/Sixth reversal	244(1) Fifth; 244(2) Sixth
actor reversal	President declares Scheduled Area; Governor organises Sixth Schedule units
assent reversal	Fifth regulation-President; ordinary Sixth council law-Governor
body reversal	TAC advises; ADC governs listed fields
PESA overstatement	use the exact verb and institution
case overstatement	state holding, legal setting and qualification

PYQS AND ANSWER PRACTICE

PYQ 1 - UPSC Prelims 2019, Q50

Under which Schedule of the Constitution of India can the transfer of tribal land to private parties for mining be declared null and void? A. Third Schedule B. Fifth Schedule C. Ninth Schedule D. Twelfth Schedule

Final-key discipline: The exact paper is locally verified, but no final official key is held in the audited local corpus. No answer letter is presented as official.

Concept resolution: Fifth Schedule paragraph 5 supports regulations restricting tribal land transfer. *Samatha* applied Andhra Pradesh's Scheduled-Area transfer regime to the impugned private mining leases. The result must not be detached from the applicable State law.

PYQ 2 - UPSC Prelims 2022, Q73

Verified routed demand: consequences of bringing an area under the Fifth Schedule.

Wording control: Exact official-paper wording and a final official key are not present in the verified local corpus, so neither is reconstructed.

Concept resolution: Scheduling preserves State executive power while adding Presidential territory, Governor reporting, Union directions, TAC advice, paragraph 5 adaptation/regulation and the PESA self-government layer.

PYQ 3 - UPSC Prelims 2023, Q39

With reference to "Scheduled Areas" in India, consider the following statements: 1. Within a State, the notification of an area as Scheduled Area takes place through an Order of the President. 2. The largest administrative unit forming the Scheduled Area is the District and the lowest is the cluster of villages in the Block. 3. The Chief Ministers of the concerned States are required to submit annual reports to the Union Home Ministry on the administration of Scheduled Areas in the States. How many of the above statements are correct? A. Only one B. Only two C. All three D. None

Final-key discipline: The exact paper is locally verified; the final official key is unavailable in the audited local corpus, so no option is inferred.

Statement audit: Statement 1 follows paragraph 6. Official criteria refer to a viable administrative unit such as district, block or taluk, but statement 2 is not converted into an answer without the final key. Statement 3 is false because the Governor reports to the President.

PYQ 4 - UPSC Prelims 2024, Q84

Consider the following statements: 1. It is the Governor of the State who recognizes and declares any community of that State as a Scheduled Tribe. 2. A community declared as a Scheduled Tribe in a State need not be so in another State. Which of the statements given above is/are correct? A. 1 only B. 2 only C. Both 1 and 2 D. Neither 1 nor 2

Official final Set-A key: B.

Explanation: Article 342 uses Presidential notification for a State or Union Territory and parliamentary law for later inclusion or exclusion. Scheduled Tribe status is territorial, so recognition in one State need not carry into another.

PYQ 5 - UPSC Prelims 2025, Q56

With reference to the Constitution of India, if an area in a State is declared as Scheduled Area under the Fifth Schedule: I. the State Government loses its executive power in such areas and a local body assumes total administration; II. the Union Government can take over the total administration of such areas under certain circumstances on the recommendations of the Governor. Which of the statements given above is/are correct? A. I only B. II only C. Both I and II D. Neither I nor II

Official final Set-A key: D.

Explanation: State executive power continues. The Governor reports to the President and Union executive power extends to directions; neither statement accurately describes total administrative takeover.

PYQ 6 - UPSC Prelims 2026, Q57

Consider the following statements about the provisions pertaining to the Scheduled Castes and the Scheduled Tribes in India: 1. Provisions regarding the administration of the Tribal Areas in Assam, Meghalaya, Tripura and Mizoram are given in the Fifth Schedule. 2. Some tribes of India are entitled to exemption from paying Income Tax on certain incomes. 3. The Constitution provides for reservation of seats in Panchayats for women belonging to the Scheduled Castes and Scheduled Tribes. Which conclusion based on the statements is correct? A. There are two correct statements, including statement 2. B. There are two correct statements, statements 1 and 3. C. There is only one correct statement. D. All three statements are correct.

Final-key discipline: A provisional local key exists but the audited routing ledger records no final answer letter; no option is declared here.

Concept audit: Statement 1 reverses the Schedules. Income-tax Act section 10(26) is a conditional statutory exemption for specified income of eligible ST members in specified areas, not a blanket exemption. Article 243D reserves Panchayat seats for SCs/STs and at least one-third of those reserved seats for women of those categories.

ORIGINAL MAINS MODELS

Original Mains 1 - 10 marks, 150 words

Question: Explain the constitutional rationale for separate administration of Scheduled and tribal areas.

Model answer (150 words):

Differentiated administration seeks equality where land alienation, customary institutions and resource dependence make a uniform model inadequate.

Article 244 creates two designs. The Fifth Schedule uses Presidential notification, continued State administration, Governor reports, Union directions, a Tribes Advisory Council and protective regulation of land transfer and money-lending. The Sixth Schedule gives specified tribal areas in Assam, Meghalaya, Tripura and Mizoram elected District or Regional Councils with legislative, executive, judicial and fiscal powers. PESA 1996 adds self-government in Fifth Schedule areas, while FRA 2006 separately recognises forest rights.

Named evidence is the contrast between a TAC, which advises, and an ADC, which can legislate on listed subjects. This shows movement from executive guardianship toward local agency.

However, special status is not isolation: Fundamental Rights, State and Union authority, assent requirements and judicial review continue. Differentiation is justified when it protects land, culture and voice through accountable self-government rather than permanent paternalism.

Original Mains 2 - 10 marks, 150 words

Question: The Fifth Schedule is constitutionally powerful but institutionally under-used. Examine.

Model answer (150 words):

The Fifth Schedule contains strong protective tools. The President declares Scheduled Areas; State executive power continues; the Governor reports annually or when required; and the Union may issue directions. The Governor may adapt parliamentary or State laws and make peace-and-good-government regulations restricting tribal land transfer, allotment and money-lending. Regulations require TAC consultation where one exists and Presidential assent.

Yet activation depends on institutions. TAC advice is limited to referred matters. The Constitution prescribes no public report template. State extractive priorities may conflict with anti-alienation purposes, while PESA powers remain fragmented across sectoral laws.

Samatha demonstrates the protective potential of State land-transfer law read with the Schedule. Its jurisdictional limit also shows that text alone cannot replace precise local legislation and enforcement.

Reform should require evidence-based reports, fixed TAC calendars, reasoned action-taken responses, updated land records and accessible restoration remedies, while avoiding the claim that gubernatorial power is unreviewable personal discretion.

Original Mains 3 - 15 marks, 250 words

Question: Discuss the powers of Sixth Schedule councils and their constitutional limits.

Model answer (206 words):

Sixth Schedule councils are constitutionally protected territorial governments, but they are subject-specific bodies within the State and Union framework.

Legislatively, paragraph 3 covers land, forests other than reserved forests, agricultural water, shifting cultivation, village administration, chiefs, inheritance, marriage, divorce and social customs. Council laws require Governor assent. Assam-specific paragraphs 3A and 3B enlarge subjects for named councils.

Executively, paragraph 6 permits management of primary schools, dispensaries, markets, ferries, fisheries and roads, with additional functions capable of entrustment. Judicially, paragraph 4 permits village or council courts and appellate arrangements for specified disputes involving tribal parties. These forums do not displace High Courts. Fiscally, councils assess land revenue, levy enumerated taxes, maintain District or Regional Funds and regulate specified markets and non-tribal trading. Paragraph 9 provides an agreed share of mineral royalties, with disputes determined by the Governor.

The limits are equally important. Competence is enumerated, not plenary. State-specific paragraphs 12, 12A, 12AA and 12B govern application of State and parliamentary laws differently. Paragraphs 14-16 provide commission, suspension and dissolution controls. Bodoland's forty-six-member arrangement and Assam's additional subjects are bounded exceptions.

Thus, the Schedule creates real autonomy only when functions, staff, funds, assent decisions, audit and judicial remedies operate together. It is neither municipal delegation nor sovereign Statehood.

Original Mains 4 - 15 marks, 250 words

Question: PESA is a calibrated code of community power, not a universal Gram Sabha veto. Discuss.

Model answer (218 words):

PESA 1996 extends modified Part IX only to Fifth Schedule Scheduled Areas. Its strength lies in assigning different legal verbs to different decisions.

The Gram Sabha approves village-level social and economic development plans, programmes and projects before implementation and identifies beneficiaries. The village Panchayat obtains Gram Sabha certification of fund use. For land acquisition and resettlement or rehabilitation, the Act requires consultation with the Gram Sabha or Panchayat at the appropriate level. For specified prospecting licences, mining leases and auction concessions concerning minor minerals, prior recommendation is mandatory. Section 4(m) requires State law to endow powers over minor forest produce, village markets, money-lending, intoxicants, land-alienation prevention and restoration, social-sector institutions and local plans or resources.

Named evidence is the statutory contrast between 'consult' for acquisition and 'recommend' for minor-mineral decisions. Analysis follows: each verb identifies a different level of legal intensity, actor and project stage. Treating them as one veto obscures both enforceable powers and real gaps.

PESA also protects custom, cultural identity and community resources through a habitation-based village concept. However, it does not apply to Sixth Schedule areas, does not confer title under FRA and does not replace forest, environment, acquisition or mining law.

Implementation therefore requires conformity of State sectoral laws, usable records, inclusive Gram Sabhas and remedies keyed to the exact statutory verb.

Original Mains 5 - 20 marks, 250 words

Question: Analyse tribal land and resource protection through the Fifth Schedule, PESA, FRA and judicial review.

Model answer (219 words):

Tribal resource governance is cumulative: no single consultation, clearance or payment satisfies the whole legal chain.

First, Fifth Schedule paragraph 5 permits regulations restricting land transfer, land allotment and money-lending. The operative State regulation determines the actual prohibition and remedy. Second, PESA assigns consultation for acquisition and R&R, prior recommendation for specified minor-mineral decisions and State-law powers to prevent and restore alienated land. Third, FRA recognises individual, community and community forest resource rights; the Gram Sabha initiates claims and section 5 links rights with conservation duties.

Samatha v. State of Andhra Pradesh (1997) invalidated the impugned leases to non-tribal private mining companies under Andhra Pradesh's Scheduled-Area transfer regime. Its principle protects against indirect State-facilitated alienation, but later jurisdictional treatment prevents using it as an automatic nationwide mining ban.

Orissa Mining Corporation v. MoEF (2013) required Gram Sabhas to determine specified FRA-linked cultural, religious and community claims at Niyamgiri. MoEF retained the final Stage-II clearance decision. Chebrolu (2020) adds the equality boundary: protective Scheduled-Area policy cannot justify 100 percent reservation without constitutional limits.

Therefore, a lawful project must identify territorial status, apply transfer law, complete PESA and FRA stages, conduct environmental appraisal, consider alternatives and provide enforceable restoration or R&R. Judicial review secures legality and reasons; it does not create an absolute community veto or erase statutory authorities.

Original Mains 6 - 20 marks, 250 words

Question: Design an accountability reform for Fifth and Sixth Schedule institutions.

Model answer (221 words):

Reform should preserve constitutional asymmetry while making the exercise and non-exercise of power visible, reasoned and remediable.

For the Fifth Schedule, publish current Presidential Orders and habitation maps; standardise Governor reports around land alienation, PESA, FRA, services and outcomes; and require fixed TAC calendars with action-taken responses. The TAC must remain advisory, but agenda control should not make it ceremonial.

For PESA, align Panchayat, land, excise, market, money-lending and minor-mineral laws with section 4's exact verbs. Support local-language notice, inclusive meetings, independent facilitation and authenticated records. Link land and community forest resource maps to legal aid and restoration tracking.

For Sixth Schedule councils, publish council laws and assent reasons, map functions with staff and funds, strengthen audit and committee scrutiny, and train village-court personnel while preserving appeals and High Court review. Paragraph 14 commissions and paragraphs 15-16 controls should use evidence, reasons and legislative oversight, not partisan substitution.

Article 275 grants and Article 339 directions can support capacity and convergence. Integrated Tribal Development Agencies and the Scheduled Tribe Component are administrative instruments; they cannot replace TACs, Gram Sabhas or ADCs.

The final test is institutional alignment: the body that decides should possess information, resources and responsibility, while affected communities can challenge illegality. Digital systems must not exclude remote groups, and customary autonomy must remain compatible with equality, dignity and internal-minority protection.